

The Madras State (Alteration of Name) (Adaptation of Laws on Union Subjects) Order, 1970

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Whereas, by sub-section (1) of section 6 of the Madras State (Alteration of Name) Act, 1968 (53 of 1968), the Central Government is empowered, by Order to make such adaptations and modifications of any law made before the 14th day of January 1969, relating to a matter in List I in the Seventh Schedule to the Constitution, as may be necessary or expedient for the purpose of giving effect to the alteration of the name of the State of Madras;

Now, Therefore, in exercise of the powers conferred by the said sub-section, the Central Government hereby makes the following Order, namely:-

1.

(1)

This Order may be called the Madras State (Alteration of Name) (Adaptation of Laws on Union Subjects) Order, 1970.

(2)

It shall be deemed to have come into force on the 14th day of January 1969.

2.

The General Clauses Act, 1897 (Act X of 1897), applies for the interpretation of this Order as it applies for the interpretation of a Central Act.

3.

The laws mentioned in the Schedule in this Order shall, until altered, repealed or amended by a competent legislature or other competent authority have effect subject to the adaptations and modifications directed by that Schedule.

The Schedule

The Indian Red Cross Society Act, 1920 (15 of 1920)

The Second Schedule. - In the entry relating to Madras, for "Madras", substitute "Tamil Nadu".

The Reserve Bank of India Act, 1934 (2 of 1934)

The First Schedule. - In paragraph 4, for "Madras", substitute "Tamil Nadu".

The Rubber Act, 1947 (24 of 1947)

Section 4. - In clause (b) of sub-section (3) and in sub-section (4), for "Madras", substitute "Tamil Nadu".

The Indian Nursing Council Act, 1947 (48 of 1947)

Section 3. - In sub-section (1), in sub-clause (iv) of clause (g) and in sub-clause (i) of clause (m), for "Madras", substitute "Tamil Nadu".

The Schedule. -

(1)

In part I, under the heading "A. General Nursing", in the entry in Serial No. 1, for "Government of Madras", substitute "Government of Tamil Nadu";

(2)

In Part II, in the entry in Serial No. 1, for "Government of Madras", substitute "Government of Tamil Nadu".

The Central Silk Board Act, 1948 (61 of 1948)

Section 4. - In sub-section (3), in clause (a), for "Madras", substitute "Tamil Nadu".

The Representation of the People Act, 1950 (43 of 1950)

The First Schedule, the Second Schedule and the Third Schedule. - In the Table under each of these Schedules, for "Madras", substitute "Tamil Nadu".

The Fourth Schedule,-

(1)

For the heading "Madras", substitute "Tamil Nadu";

(2)

Under the heading as so modified, in entry 4, for "Madras Panchayats Act 1958 (Madras Act XXXV of 1958)", substitute "[Tamil Nadu Panchayats Act, 1958] (Tamil Nadu Act XXXV of 1958)".

The Estate Duty Act, 1953 (34 of 1953)

Section 5 A. - In sub-section (2-A), in clause (a), for "Madras", substitute "Tamil Nadu".

The Companies Act, 1956 (1 of 1956)

After section 15, insert,-

"15-A. Special provision as to alteration of memorandum consequent on alteration of name of State of Madras. - Where, in the memorandum of association of a company in existence immediately before the commencement of the Madras State (Alteration of Name) Act, 1968 (53 of 1968), it is stated that Madras is the State in which the registered office of that company is situate, then, notwithstanding anything contained in this Act, the said memorandum shall, as from such commencement, be deemed to have been altered by substitution of a reference to the State of Tamil Nadu for the reference to the State of Madras and the Registrar of the State of Tamil Nadu shall make necessary alterations in the memorandum of association and the certificate of incorporation of the said company".

The States Reorganisation Act, 1956 (37 of 1956)

Section 15. - In clause (e), for "Madras", substitute "Tamil Nadu".

The Additional Duties of Excise (Goods of Special Importance) Act, 1957 (58 of 1957)

The Second Schedule,-

(1)

In Part I -

(a)

under the heading "bodies under State Governments", for the subheading "Madras", substitute "Tamil Nadu";

(b)

under the sub-heading as so modified, for "Madras State Electricity Board", substitute "Tamil Nadu Electricity Board";

(2)

In Part II, under the heading "Bodies under State Governments", for the sub-heading "Madras", substitute "Tamil Nadu".

The Advocates Act, 1961 (25 of 1961)

Section 3. - In sub-section (1), in clause (cc), for "State of Madras", substitute, "State of Tamil Nadu".

The Union Duties of Excise (Distribution) Act, 1962 (3 of 1962)

Section 3. - In the Table, for "Madras", substitute "Tamil Nadu".

The Pondicherry (Administration) Act, 1962 (49 of 1961)

Section 10. - In the proviso to sub-section (1), for "State of Madras", substitute "State of Tamil Nadu".

The Warehousing Corporations (Supplementary) Act, 1965 (20 of 1965)

The Schedule. - for "Madras", substitute "Tamil Nadu".

The Police Forces (Restriction of Rights) Act, 1966 (33 of 1966)

The Schedule -

(1)

In item 1, for "The Madras District Police Act, 1859", substitute "The Tamil Nadu District Police Act, 1859";

(2)

In item 8, for "(Madras Act 3 of 1888)", substitute "(Tamil Nadu Act 3 of 1888)".

The Constitution (Scheduled Castes) Order, 1950

The Schedule. - In Part VII relating to the State of Madras, for "Part VH-relating to the State of Madras for "Part VII - Madras", substitute "Part VII of Tamil Nadu".

The Constitution (Scheduled Tribes) Order, 1950

The Schedule. - In Part VII relating to the State of Madras, for "Part VII-Madras", substitute "Part VII - Tamil Nadu".

The Constitution of (Scheduled Tribes) Order, 1950.

The Schedule. - In Part VII relating to the State of Madras, for "Part VII-Madras", substitute "Part VII-Tamil Nadu".

The Delimitation Council Constituencies (Madras) Order, 1951

Clause 2. - In the opening paragraph and in items 2 to 5 of the 1 able, for "Madras", substitute "Tamil Nadu".

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